

The Angel Over the Right Shoulder; Or, The Beginning of a New Year

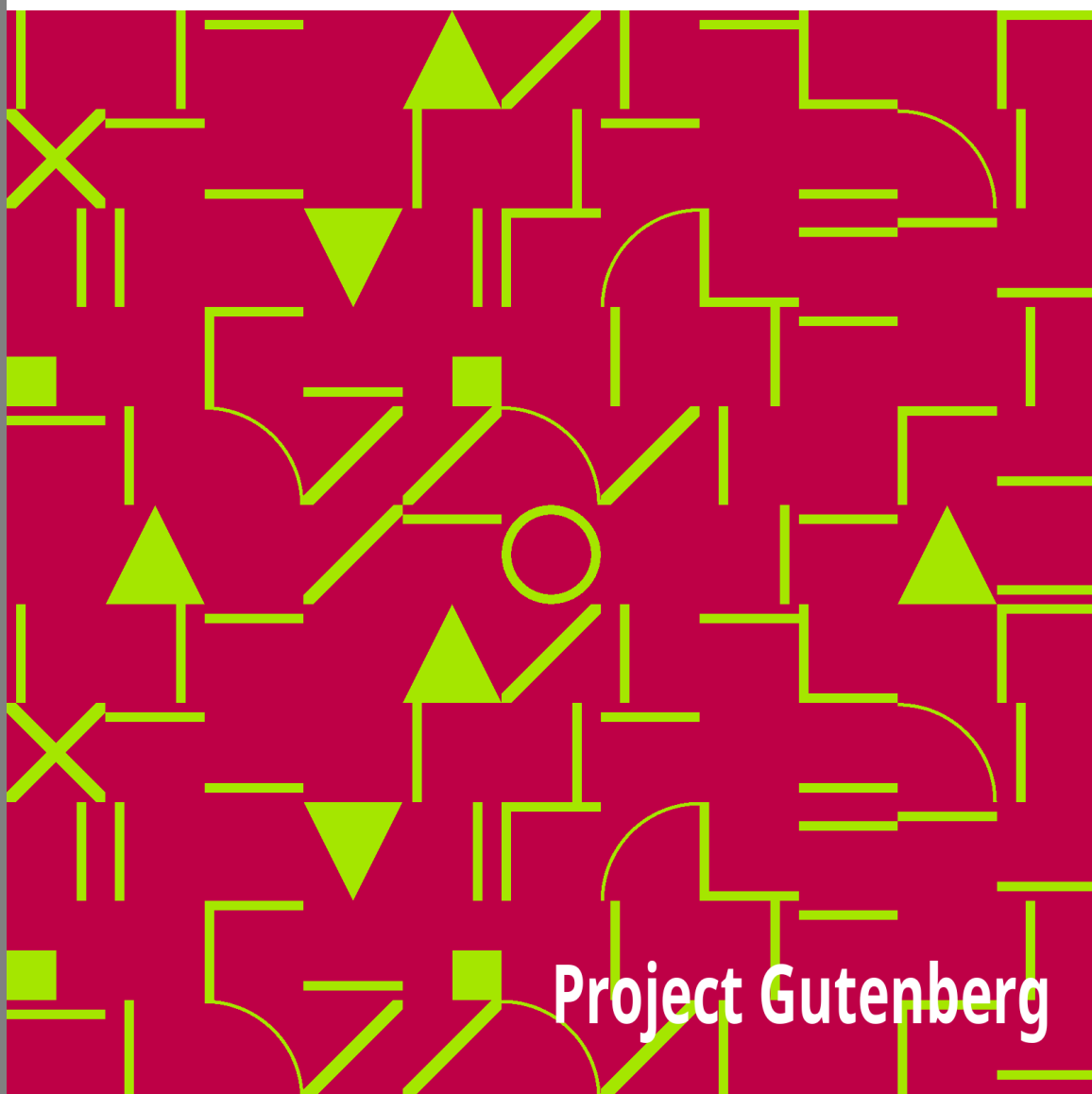
H. Trusta



Project Gutenberg

The Angel Over the Right Shoulder; Or, The Beginning of a New Year

H. Trusta



Project Gutenberg

The Project Gutenberg eBook of The Angel Over the Right Shoulder; Or, The Beginning of a New Year

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Angel Over the Right Shoulder; Or, The Beginning of a New Year

Author: H. Trusta

Release date: February 1, 2004 [eBook #11033]
Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/11033

Credits: Produced by Internet Archive; University of Florida, Children, and the
Online Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK THE ANGEL
OVER THE RIGHT SHOULDER; OR, THE BEGINNING OF A NEW
YEAR ***

The Angel over the Right Shoulder



The Angel over the Right Shoulder

or the

BEGINNING OF A NEW YEAR.

BY

THE AUTHOR OF "SUNNY SIDE."

1852.



The Angel over the Right Shoulder

"There! a woman's work is never done," said Mrs. James; "I thought, for once, I was through; but just look at that lamp, now! it will not burn, and I must go and spend half an hour over it."

"Don't you wish you had never been married?" said Mr. James, with a good-natured laugh.

"Yes"—rose to her lips, but was checked by a glance at the group upon the floor, where her husband was stretched out, and two little urchins with sparkling eyes and glowing cheeks, were climbing and tumbling over him, as if they found in this play the very essence of fun.

She did say, "I should like the good, without the evil, if I could have it."

"You have no evils to endure," replied her husband.

"That is just all you gentlemen know about it. What would you think, if you could not get an uninterrupted half hour to yourself, from morning till night? I believe you would give up trying to do anything."

"There is no need of that; all you want, is *system*. If you arranged your work systematically, you would find that you could command your time."

"Well," was the reply, "all I wish is, that you could just follow me around for one day, and see what I have to do. If you could reduce it all to system, I think you would show yourself a genius."

When the lamp was trimmed, the conversation was resumed. Mr. James had employed the "half hour," in meditating on this subject.

"Wife," said he, as she came in, "I have a plan to propose to you, and I wish you to promise me beforehand, that you will accede to it. It is to be an experiment, I acknowledge, but I wish it to have a fair trial. Now to please me, will you promise?"

Mrs. James hesitated. She felt almost sure that his plan would be quite impracticable, for what does a man know of a woman's work? yet she promised.

"Now I wish you," said he, "to set apart two hours of every day for your own private use. Make a point of going to your room and locking yourself in; and also make up your mind to let the work which is not done, go undone, if it must. Spend this time on just those things which will be most profitable to yourself. I shall bind you to your promise for one month—then, if it has proved a total failure, we will devise something else."

"When shall I begin?"

"To-morrow."

The morrow came. Mrs. James had chosen the two hours before dinner as being, on the whole, the most convenient and the least liable to interruption. They dined at one o'clock. She wished to finish her morning work, get dressed for the day, and enter her room at eleven.

Hearty as were her efforts to accomplish this, the hour of eleven found her with her work but half done; yet, true to her promise, she left all, retired to her room and locked the door.

With some interest and hope, she immediately marked out a course of reading and study, for these two precious hours; then, arranging her table, her books, pen and paper, she commenced a schedule of her work with much enthusiasm. Scarcely had she dipped her pen in ink, when she heard the tramping of little feet along the hall, and then a pounding at her door.

"Mamma! mamma! I cannot find my mittens, and Hannah is going to slide without me."

"Go to Amy, my dear; mamma is busy."

"So Amy busy too; she say she can't leave baby."

The child began to cry, still standing close to the fastened door. Mrs. James knew the easiest, and indeed the only way of settling the trouble, was to go herself and hunt up the missing mittens. Then a parley must be held with Frank, to induce him to wait for his sister, and the child's tears must be

dried, and little hearts must be all set right before the children went out to play; and so favorable an opportunity must not be suffered to slip, without impressing on young minds the importance of having a "place for everything and everything in its place;" this took time; and when Mrs. James returned to her study, her watch told her that *half* her portion had gone. Quietly resuming her work, she was endeavoring to mend her broken train of thought, when heavier steps were heard in the hall, and the fastened door was once more besieged. Now, Mr. James must be admitted.

"Mary," said he, "cannot you come and sew a string on for me? I do believe there is not a bosom in my drawer in order, and I am in a great hurry. I ought to have been down town an hour ago."

The schedule was thrown aside, the workbasket taken, and Mrs. James followed him. She soon sewed on the tape, but then a button needed fastening—and at last a rip in his glove, was to be mended. As Mrs. James stitched away on the glove, a smile lurked in the corners of her mouth, which her husband observed.

"What are you laughing at?" asked he.

"To think how famously your plan works."

"I declare!" said he, "is this your study hour? I am sorry, but what can a man do? He cannot go down town without a shirt bosom!"

"Certainly not," said his wife, quietly.

When her liege lord was fairly equipped and off, Mrs. James returned to her room. A half an hour yet remained to her, and of this she determined to make the most. But scarcely had she resumed her pen, when there was another disturbance in the entry. Amy had returned from walking out with the baby, and she entered the nursery with him, that she might get him to sleep. Now it happened that the only room in the house which Mrs. James could have to herself with a fire, was the one adjoining the nursery. She had become so accustomed to the ordinary noise of the children, that it did not disturb her; but the very extraordinary noise which master Charley sometimes felt called upon to make, when he was fairly on his back in the cradle, did disturb the unity of her thoughts. The words which she was reading rose and fell with the screams and lulls of the child, and she felt

obliged to close her book, until the storm was over. When quiet was restored in the cradle, the children came in from sliding, crying with cold fingers—and just as she was going to them, the dinner-bell rang.

"How did your new plan work this morning?" inquired Mr. James.

"Famously," was the reply, "I read about seventy pages of German, and as many more in French."

"I am sure *I* did not hinder you long."

"No—yours was only one of a dozen interruptions."

"O, well! you must not get discouraged. Nothing succeeds well the first time. Persist in your arrangement, and by and by the family will learn that if they want anything of you, they must wait until after dinner."

"But what can a man do?" replied his wife; "he cannot go down town without a shirt-bosom."

"I was in a bad case," replied Mr. James, "it may not happen again. I am anxious to have you try the month out faithfully, and then we will see what has come of it."

The second day of trial was a stormy one. As the morning was dark, Bridget over-slept, and consequently breakfast was too late by an hour. This lost hour Mrs. James could not recover. When the clock struck eleven, she seemed but to have commenced her morning's work, so much remained to be done. With mind disturbed and spirits depressed, she left her household matters "in the suds," as they were, and punctually retired to her study. She soon found, however, that she could not fix her attention upon any intellectual pursuit. Neglected duties haunted her, like ghosts around the guilty conscience. Perceiving that she was doing nothing with her books, and not wishing to lose the morning wholly, she commenced writing a letter. Bridget interrupted her before she had proceeded far on the first page.

"What, ma'am, shall we have for dinner? No marketing ha'n't come."

"Have some steaks, then."

"We ha'n't got none, ma'am."

"I will send out for some, directly."

Now there was no one to send but Amy, and Mrs. James knew it. With a sigh, she put down her letter and went into the nursery.

"Amy, Mr. James has forgotten our marketing. I should like to have you run over to the provision store, and order some beef-steaks. I will stay with the baby."

Amy was not much pleased to be sent out on this errand. She remarked, that "she must change her dress first."

"Be as quick as possible," said Mrs. James, "for I am particularly engaged at this hour."

Amy neither obeyed, nor disobeyed, but managed to take her own time, without any very deliberate intention to do so. Mrs. James, hoping to get along with a sentence or two, took her German book into the nursery. But this arrangement was not to master Charley's mind. A fig did he care for German, but "the kitties," he must have, whether or no—and kitties he would find in that particular book—so he turned its leaves over in great haste. Half of the time on the second day of trial had gone, when Amy returned and Mrs. James with a sigh, left her nursery. Before one o'clock, she was twice called into the kitchen to superintend some important dinner arrangement, and thus it turned out that she did not finish one page of her letter.

On the third morning the sun shone, and Mrs. James rose early, made every provision which she deemed necessary for dinner, and for the comfort of her family; and then, elated by her success, in good spirits, and with good courage, she entered her study precisely at eleven o'clock, and locked her door. Her books were opened, and the challenge given to a hard German lesson. Scarcely had she made the first onset, when the door-bell was heard to ring, and soon Bridget coming nearer and nearer—then tapping at the door.

"Somebodies wants to see you in the parlor, ma'am."

"Tell them I am engaged, Bridget."

"I told 'em you were to-home, ma'am, and they sent up their names, but I ha'n't got 'em, jist."

There was no help for it—Mrs. James must go down to receive her callers. She had to smile when she felt little like it—to be sociable when her thoughts were busy with her task. Her friends made a long call—they had nothing else to do with their time, and when they went, others came. In very unsatisfactory chit-chat, her morning slipped away.

On the next day, Mr. James invited company to tea, and her morning was devoted to preparing for it; she did not enter her study. On the day following, a sick-head-ache confined her to her bed, and on Saturday the care of the baby devolved upon her, as Amy had extra work to do. Thus passed the first week.

True to her promise, Mrs. James patiently persevered for a month, in her efforts to secure for herself this little fragment of her broken time, but with what success, the first week's history can tell. With its close, closed the month of December.

On the last day of the old year, she was so much occupied in her preparations for the morrow's festival, that the last hour of the day was approaching, before she made her good night's call in the nursery. She first went to the crib and looked at the baby. There he lay in his innocence and beauty, fast asleep. She softly stroked his golden hair—she kissed gently his rosy cheek—she pressed the little dimpled hand in hers, and then, carefully drawing the coverlet over it, tucked it in, and stealing yet another kiss—she left him to his peaceful dreams and sat down on her daughter's bed. She also slept sweetly, with her dolly hugged to her bosom. At this her mother smiled, but soon grave thoughts entered her mind, and these deepened into sad ones. She thought of her disappointment and the failure of her plans. To her, not only the past month but the whole past year, seemed to have been one of fruitless effort—all broken and disjointed—even her hours of religious duty had been encroached upon, and disturbed. She had accomplished nothing, that she could see, but to keep her house and family in order, and even this, to her saddened mind, seemed to have been but indifferently done. She was conscious of yearnings for a more earnest life than this. Unsatisfied longings for something which she had not attained,

often clouded what, otherwise, would have been a bright day to her; and yet the causes of these feelings seemed to lie in a dim and misty region, which her eye could not penetrate.

What then did she need? To see some *results* from her life's work? To know that a golden cord bound her life-threads together into *unity* of purpose—notwithstanding they seemed, so often, single and broken?

She was quite sure that she felt no desire to shrink from duty, however humble, but she sighed for some comforting assurance of what *was duty*. Her employments, conflicting as they did with her tastes, seemed to her frivolous and useless. It seemed to her that there was some better way of living, which she, from deficiency in energy of character, or of principle, had failed to discover. As she leaned over her child, her tears fell fast upon its young brow.

Most earnestly did she wish, that she could shield that child from the disappointments and mistakes and self-reproach from which the mother was then suffering; that the little one might take up life where she could give it to her—all mended by her own experience. It would have been a comfort to have felt, that in fighting the battle, she had fought for both; yet she knew that so it could not be—that for ourselves must we all learn what are those things which "make for our peace."

The tears were in her eyes, as she gave the good-night to her sleeping daughter—then with soft steps she entered an adjoining room, and there fairly kissed out the old year on another chubby cheek, which nestled among the pillows. At length she sought her own rest.

Soon she found herself in a singular place. She was traversing a vast plain. No trees were visible, save those which skirted the distant horizon, and on their broad tops rested wreaths of golden clouds. Before her was a female, who was journeying towards that region of light. Little children were about her, now in her arms, now running by her side, and as they travelled, she occupied herself in caring for them. She taught them how to place their little feet—she gave them timely warnings of the pit-falls—she gently lifted them over the stumbling-blocks. When they were weary, she soothed them by singing of that brighter land, which she kept ever in view, and towards which she seemed hastening with her little flock. But what was

most remarkable was, that, all unknown to her, she was constantly watched by two angels, who reposed on two golden clouds which floated above her. Before each was a golden book, and a pen of gold. One angel, with mild and loving eyes, peered constantly over her right shoulder—another kept as strict watch over her left. Not a deed, not a word, not a look, escaped their notice. When a good deed, word, look, went from her, the angel over the right shoulder with a glad smile, wrote it down in his book; when an evil, however trivial, the angel over the left shoulder recorded it in his book—then with sorrowful eyes followed the pilgrim until he observed penitence for the wrong, upon which he dropped a tear on the record, and blotted it out, and both angels rejoiced.

To the looker-on, it seemed that the traveller did nothing which was worthy of such careful record. Sometimes she did but bathe the weary feet of her little children, but the angel over the *right shoulder*—wrote it down. Sometimes she did but patiently wait to lure back a little truant who had turned his face away from the distant light, but the angel over the *right shoulder*—wrote it down. Sometimes she did but soothe an angry feeling or raise a drooping eye-lid, or kiss away a little grief; but the angel over the right shoulder—*wrote it down*.

Sometimes, her eye was fixed so intently on that golden horizon, and she became so eager to make progress thither, that the little ones, missing her care, did languish or stray. Then it was that the angel over the *left shoulder*, lifted his golden pen, and made the entry, and followed her with sorrowful eyes, until he could blot it out. Sometimes she seemed to advance rapidly, but in her haste the little ones had fallen back, and it was the sorrowing angel who recorded her progress. Sometimes so intent was she to gird up her loins and have her lamp trimmed and burning, that the little children wandered away quite into forbidden paths, and it was the angel over the *left shoulder* who recorded her diligence.

Now the observer as she looked, felt that this was a faithful and true record, and was to be kept to that journey's end. The strong clasps of gold on those golden books, also impressed her with the conviction that, when they were closed, it would only be for a future opening.

Her sympathies were warmly enlisted for the gentle traveller, and with a beating heart she quickened her steps that she might overtake her. She wished to tell her of the angels keeping watch above her—to entreat her to be faithful and patient to the end—for her life's work was all written down—every item of it—and the *results* would be known when those golden books should be unclasped. She wished to beg of her to think no duty trivial which must be done, for over her right shoulder and over her left were recording angels, who would surely take note of all!

Eager to warn the traveller of what she had seen, she touched her. The traveller turned, and she recognized or seemed to recognize *herself*. Startled and alarmed she awoke in tears. The gray light of morning struggled through the half-open shutter, the door was ajar and merry faces were peeping in.

"Wish you a happy new year, mamma,"—"Wish you a *Happy new Year*"—"a happy noo ear."

She returned the merry greeting most heartily. It seemed to her as if she had entered upon a new existence. She had found her way through the thicket in which she had been entangled, and a light was now about her path. The *Angel over the Right Shoulder* whom she had seen in her dream, would bind up in his golden book her life's work, if it were but well done. He required of her no great deeds, but faithfulness and patience to the end of the race which was set before her. Now she could see plainly enough, that though it was right and important for her to cultivate her own mind and heart, it was equally right and equally important, to meet and perform faithfully all those little household cares and duties on which the comfort and virtue of her family depended; for into these things the angels carefully looked—and these duties and cares acquired a dignity from the strokes of that golden, pen—they could not be neglected without danger.

Sad thoughts and sadder misgivings—undefined yearnings and ungratified longings seemed to have taken their flight with the Old Year, and it was with fresh resolution and cheerful hope, and a happy heart, she welcomed the *Glad New Year*. The *Angel over the Right Shoulder* would go with her, and if she were found faithful, would strengthen and comfort her to its close.

END.

*** END OF THE PROJECT GUTENBERG EBOOK THE ANGEL
OVER THE RIGHT SHOULDER; OR, THE BEGINNING OF A NEW
YEAR ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.